

attorney, but that they must not suffer it to pass through his hands in the ordinary course of business, in the recovery of a debt by *action*, was beyond any previous decision; unless, as suggested, it had been so ruled by Lord Eldon. However, we have here the authority of Sir A. Hart, that the plaintiffs' attorney in an action cannot *virtute officii* sign a discharge, and that if the plaintiffs empower him to receive the amount recovered, they are answerable for his receipts as for the act of an agent improperly appointed to sign such receipt.

8. **Trustee not to require security from his agent.** — A trustee or executor is not called upon to take any *security* from the agent; for to do that upon every occasion would tend greatly to the hindrance of business (*b*).

[If a trustee employs an agent under circumstances which justify the employment, and a loss arises from the insolvency of the agent, the *onus* is on the persons seeking to make the trustee liable for the loss, to show that it was attributable to the default of the trustee (*c*).]

9. **How trust money to be transmitted.** — Where trust money is to be transmitted to a distance, the trustee may do it most conveniently and securely through the medium of a responsible bank, or he may take bills drawn by a person of undoubted credit, and payable at the place whither the money is to be sent (*d*).

10. **Payments into bank must be to the account of the trust.** — But the money must be paid in to the account of the *trust estate*, and the bills must be taken in favour of the trustee *in that character*, and if he neglect these precautions, then, if the bank break, or the bills be dishonoured, the trustee will be liable for the loss to *the cestuis que trust* (*e*).

11. **Rule at law as to liability of executors.** — The rule formerly applied to *executors* in a Court of law seems to have been somewhat different from that established in Courts of

(*b*) *Ex parte Belchier*, Amb. 220, per Lord Hardwicke.

[(*c*) *Re Brier*, 26 Ch. D. 238.]

(*d*) *Knight v. E. of Plymouth*, 1 Dick. 120; S. C. 3 Atk. 480; recognized *Ex parte Belchier*, Amb. 219,

and *Routh v. Howell*, 3 Ves. 566; *Joy v. Campbell*, 1 Sch. & Lef. 341; and see *Wren v. Kirton*, 11 Ves. 380, 385.

(*e*) See *Wren v. Kirton*, 11 Ves. 380, 381; *Massey v. Banner*, 1 J. & W. 247.